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|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------|
| <b>Court:</b> <input type="checkbox"/> <b>Municipal</b> <input type="checkbox"/> <b>District</b><br>Colorado City/Town or County: _____<br>Court Mailing Address: _____<br><a href="#">participant/case info review zone</a><br><b>Parties:</b> _____<br>Plaintiff: The People of the City/Town of _____<br>v. _____<br>Defendant: _____ | <i>This box is for court use only.</i>                    |
| <b>Filed by:</b><br>Name: _____<br>Mailing Address.: _____<br>Phone: _____ Fax: _____<br>Email: _____ Bar Number: _____<br><small>(For lawyers)</small>                                                                                                                                                                                  | Case Number: _____<br>Division: _____<br>Courtroom: _____ |
| <b>Petition to Seal Municipal Conviction Records</b>                                                                                                                                                                                                                                                                                     |                                                           |

**1. The Petitioner is: (check one only)**

- ☐ the Defendant and the primary subject of the criminal conviction record.
- ☐ the designated representative of the Defendant, by power of attorney or notarized authorization.
- ☐ the parent of the Defendant, if Defendant is under legal disability.
- ☐ the appointed legal representative of the Defendant, if Defendant is under legal disability.

**2. I Information about the Petitioner:**      Date of Birth: \_\_\_\_\_

If different from the "filed by" section above, also give the Petitioner's:

Mailing Address: \_\_\_\_\_

City: \_\_\_\_\_ State: \_\_\_\_\_ Zip Code: \_\_\_\_\_

Main Phone #: \_\_\_\_\_ Work Phone #: \_\_\_\_\_

**3. The criminal conviction records are in the custody of the following agencies:**

☐ Municipal Courts      Case Number: \_\_\_\_\_  
 Mailing Address: \_\_\_\_\_

☐ Sheriff's Department  
 Mailing Address: \_\_\_\_\_

☐ District Attorney  
 Mailing Address: \_\_\_\_\_

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☐ City Attorney  
 Mailing Address: \_\_\_\_\_

☐ Law Enforcement (name) \_\_\_\_\_ Case Number: \_\_\_\_\_  
Mailing Address: \_\_\_\_\_

☒ Colorado Bureau of Investigation (CBI) (Required)

ATTN: Identification-Seals, 690 Kipling St. STE 3000, Lakewood, CO 80215

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☐ Other: \_\_\_\_\_  
Mailing Address: \_\_\_\_\_

**4. Information about the criminal conviction to seal is as follows:**

Identify offense(s) convicted of in the case requesting to seal:

☐ Municipal Violation(s) of \_\_\_\_\_

Date Sentenced: \_\_\_\_\_

Probation/Parole Supervision Termination Date: \_\_\_\_\_

**5. Was this case appealed?** ☐ Yes ☐ No If yes, please provide the following information:

Appeal Case Number: \_\_\_\_\_

Appellate Court: \_\_\_\_\_

Result: \_\_\_\_\_ Date: \_\_\_\_\_

- 6.** A current verified copy of the Defendant's criminal history record is attached, and the criminal history record check was conducted no more than 20 days prior to the filing of this Petition. ☐ Yes  
☐ No (If it is not attached to this Petition, a copy of the criminal history record must be filed with the Court no later than 10 days after the filing of this Petition)

- 7.** Does Defendant still owe restitution? ☐ Yes. ☐ No.

- 8.** The Petitioner further shows the Court that the harm to Defendant's privacy or the danger of unwarranted, adverse consequences outweighs the public interest in retaining the records. Explain:

\_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_

- 9.** The Petition is for a conviction eligible for sealing under § 24-72-708 C.R.S

- 10.** The case I am requesting be sealed contains at least one charge that is not a class 1 misdemeanor traffic offense, class 2 misdemeanor traffic offense, class A traffic infraction, or class B traffic infraction.

- 11.** I understand sealing is not available for records pertaining to a deferred judgement and sentence concerning the holder of a commercial driver's license or the operator of a commercial motor vehicle pursuant to § 42-2-402, C.R.S., or an offense for which the factual basis involved unlawful sexual behavior pursuant to § 16-22-102(9), C.R.S.

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- 12.** If, subsequent to the conviction in the case I am requesting be sealed, I have been convicted of a single offense that was not a felony and did not involve domestic violence as defined in § 18-6-

800.3(1), unlawful sexual behavior as defined in § 16-22-102(9), or child abuse as defined in § 18-6-401, I understand sealing is not available for records pertaining to a municipal assault or battery offense, as defined in § 18-6-800.3(1) or any other municipal violation in which the underlying factual basis involves domestic violence as defined in § 18-6-800.3(1).

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**13.** Petitioner requests the Court to enter an order sealing the municipal conviction record pertaining to the Defendant, pursuant to § 24-72-703 and § 24-72-708 C.R.S., and to seal this action.

**14. Certificate of Service**

I certify that on *(enter date)* \_\_\_\_\_, I gave a copy of this document to the prosecuting attorney by: *(select at least one)*

☐ Efiling *(where available)*

☐ Email or Fax to: \_\_\_\_\_

☐ Hand Delivery, to: *(name, place)* ☐ Regular Mail, addressed to: *(name, full address)*

1) \_\_\_\_\_

2) \_\_\_\_\_

**15. Signature**

\_\_\_\_\_  
Petitioner (Defendant) Signature

\_\_\_\_\_  
Dated

\_\_\_\_\_  
Lawyer Signature *(if any)*

\_\_\_\_\_  
Dated

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